

#	Case Name	Tentative
50.		
51.	Masaoka v. Ayres Self Storage 2023-01357243	Defendant Ayres Self Storage Costa Mesa, LLC's motion to declare plaintiff Arther Masaoka a vexatious litigant and dismiss the action or require a bond is DENIED. Defendant requests relief pursuant to Code of Civil Procedure section 391.3 (b), or in the alternative, Code of Civil Procedure section 391.3(a). Section 391.3(b) requires defendant to show, among other things, that the litigation has "no merit...." (Code Civ. Proc., § 391.3, subd. (b).) Section 391.3(a) similarly requires defendant to show, among other things, that "there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant...." (Code Civ. Proc., § 391.3, subd. (a).) Defendant has failed to show the litigation has "no merit" or that "there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant" either based on the evidence or as matter of law. (Code Civ. Proc., § 391.3, subds. (a), (b); see <i>Golin v. Allenby</i> (2010) 190 Cal.App.4th 616, 640 [burden], 642 [abuse of discretion to determine plaintiff has no reasonable probability of prevailing without a legal or evidentiary basis for the determination].) The complaint in this action alleges a single cause of action for premises liability (negligence) arising out of an incident occurring at defendant's property located at 1880 Whittier Ave, Costa Mesa, CA 92627 on 10/22/21. Plaintiff alleges defendant negligently owned, controlled, maintained, managed, and/or operated a freight elevator, causing goods placed in the elevator to fall and strike plaintiff. (See Compl. ¶¶ Prem.L-1, Prem.L-2.) At his deposition, plaintiff clarified his allegations by testifying as follows. At the time of the incident, plaintiff loaded a bed frame (weighing about 100-120 lbs.) and 7-10 boxes (each weighing about 50-80 lbs.) onto two rolling carts that were already in the subject freight elevator, closed the elevator entrance access door, and pushed the "up" button to send the items to the second floor. (Holaday Decl. at Ex. 1 [Pl. Depo. at pp. 47-53].) Plaintiff took the stairs and arrived at the second

floor before the elevator stopped moving. (*Id.* at Ex. 1 [Pl. Depo. p. 57].) Plaintiff waited for the elevator on the second floor, approximately 1.5–3 feet away from the elevator doors. (*Id.* at Ex. 1 [Pl. Depo. pp. 57-58].) When the elevator stopped moving, plaintiff heard a loud crash coming from the inside of the elevator and the elevator doors flung open on their own. (*Id.* at Ex. 1 [Pl. Depo. p. 58].) When the doors flung open, one of the doors “tore [his] shoe and the upper part of [his] foot was ripped open,” and “mangled” his foot. (*Id.* at Ex. 1 [Pl. Depo. pp. 60-61].) “Then something hit [him] in the forehead,” causing plaintiff to fall and hit the back of his head on the floor. (*Ibid.*)

Defendant contends that the litigation has no merit and that plaintiff has no reasonable probability of prevailing in this action based on the declaration of its expert mechanical engineer, Brad Rutledge, MS PE. (See Mtn. Memo. P&As at pp. 5, 14-20.) Mr. Rutledge’s declaration does not negate these allegations or otherwise show that there is no reasonable probability that plaintiff will prevail in this litigation, as discussed below.

Mr. Rutledge’s declaration does not establish that defendant was not negligent. Specifically, Mr. Rutledge declares the elevator displayed a Conveyance Permit with an expiration date of 1/25/17. (Rutledge Decl. ¶ 16.) He then declares that “[t]he subject elevator was inspected independently by the State of California Department of Industrial Relations Division of Occupational Safety and Health with Conveyance Permits issued before and after the claimed incident” (*id.* ¶¶ 6, 19, 23)—but fails to provide any relevant dates or otherwise state that the elevator was in fact properly permitted at the time of the incident on 10/22/21. (See *id.*, in passim.) Merely claiming that the elevator was properly permitted “before” the incident (which could be before 1/25/17) and “after” the incident does not show that it was properly permitted for use at the time of the incident. Mr. Rutledge further declares the subject elevator was serviced and “had maintenance performed on [5/5/21]” by a private elevator service company (Doc Pros) “approximately 5 months prior to the claimed incident” (*id.* ¶¶ 7, 20), but fails to provide any further information regarding this service visit, such as why the elevator needed service/maintenance in the first place or whether the requested service/maintenance was properly performed and/or fixed whatever issue it was meant to address.

Defendant has therefore failed to demonstrate the litigation has “no merit” or that there is no reasonable probability that

		the plaintiff will prevail based on the weight of the evidence. Defendant has also failed to provide any argument or authority as to how, on these facts, plaintiff's claim fails as a matter of law. (See Mtn. Memo. P&As, in passim.) Defendant's request for judicial notice is GRANTED. (See Evid. Code, § 452, subds. (d), (h).) Trial is set for September 21, 2026 at 9:30 a.m. in Department C28. The parties are ordered to comply with the court's standing order and Local Rule 317. Should plaintiff desire a trial by jury, plaintiff is ordered to post jury fees on or before August 21, 2026. Failure to post jury fees could result in a waiver of the right to a jury trial. Defendant shall give notice of this ruling.
52.	Matthew R. Silver and Civica Law Group APC v. Curtis R. Wright 2025-01478015	Petitioners Matthew R. Silver and Civica Law Group APC's motion to appoint receiver is DENIED WITHOUT PREJUDICE. (Code Civ. Proc., § 564 [authorizing receivership].) While moving petitioners request a receivership to enforce an injunction which does not appear mandatory on its face, the practical effect of the requested relief, allowing appointment of a receiver with broad powers over respondents' business, is barred by the appellate stay. (Code Civ. Proc., § 916, subd. (a) ["the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby"]; <i>Daly v. San Bernardino County Bd. of Supervisors</i> (2021) 11 Cal.5th 1030, 1040-1041 [appellate stays re: mandatory vs. prohibitory injunctions]; <i>Varian Medical Systems, Inc. v. Delfino</i> (2005) 35 Cal.4th 180, 189-190 ["In determining whether a proceeding is embraced in or affected by the appeal, we must consider the appeal and its possible outcomes in relation to the proceeding and its possible results ... A trial court proceeding ... affects the effectiveness of an appeal if the possible outcomes on appeal and the actual or possible results of the proceeding are irreconcilable ... [or] if the very purpose of the appeal is to avoid the need for that proceeding".]) As the motion is denied due to the appellate stay and the court does not reach the merits at this time, moving party's request for judicial notice is also DENIED WITHOUT PREJUDICE. (<i>Soukup v. Law Offices of Herbert Hafif</i> (2006) 39 Cal.4th 260, 295 [court is not required to take judicial notice of irrelevant documents].) Petitioners shall give notice of this ruling.